POSSE SOLUTIONS (PVT) LTD

versus

PONK MINING (PRIVATE) LIMITED

AND

PHILISANI NCUBE

AND

THE SHERRIFF OF THE HIGH COURT

AND

PROVINCIAL MINING DIRECTOR N.O

IN THE HIGH COURT OF ZIMBABWE
NDUNA J
BULAWAYO 18 MARCH 2026

Urgent Chamber application: Spoliation Order

Ms MV Nyika with Mr T Vhiki, for the applicant
S Nkomo with L Ngwenya, for the respondent

NDUNA J: This matter arises from an urgent dispute between two neighbouring mining entities operating in Matopo, Zimbabwe. The Applicant approached this Court seeking a *Mandament van Spolie.*

FACTUAL BACKGROUND

The Applicant submitted that it is the lawful holder of Special Grant No. 9929 issued under the Mines and Minerals Act, which authorises it to conduct mining operations over approximately 19.75 hectares situated at Howard Farm in Matopo. According to the Applicant, it had been in peaceful and undisturbed possession of the mining area and had actively conducted mining operations thereon. In the course of its operations, the Applicant had extracted significant

quantities of gold ore which had been heaped on site in preparation for processing, with each heap containing approximately twenty tonnes.

The Applicant alleged that on 7 March 2026 the Respondent, together with its employees, unlawfully and forcibly entered the Applicant's mining premises. It was contended that the Respondent forcefully gained access to the mine and, without the consent or authority of the Applicant, seized and loaded approximately 600 tonnes of gold ore onto trucks before transporting the ore from the Applicant's mine to the Respondent's mining location. The Applicant valued the allegedly looted ore at approximately USD 284,400.00. Following the alleged dispossession, the Applicant attempted to engage the Respondent in order to recover the ore but those attempts proved unsuccessful. The Applicant further alleged that the Respondent remained adamant in its position and threatened to return to take additional ore. As a result of these events, the Applicant ceased its mining operations and approached the court on an urgent basis seeking restoration of possession. The Applicant contended that urgency arose from the nature of gold ore, which can easily be disposed of or processed, thereby rendering restoration impossible if the court failed to intervene promptly.

In response, the Respondent opposed the application and raised preliminary objections *in limine.*

1. Non-Existent Form

The Respondent argued that the application was fatally defective because the notice of opposition referred to "Form 29A," which does not exist under the High Court Rules, 2021. According to the Respondent, court proceedings must comply strictly with the forms prescribed by the rules governing motion proceedings. It was submitted that reliance on a non-existent form rendered the application irregular and therefore a nullity. The Respondent maintained that where a litigant invokes a form that is not recognised by the rules, the process becomes legally incompetent and incapable of sustaining the proceedings before the court.

2. Material Disputes of Fact

The Respondent further contended that the matter could not properly be determined on the papers because there were material disputes of fact between the parties. It was argued that the central issues in the application were sharply contested and incapable of resolution without the leading of viva voce evidence.

The Respondent identified several aspects in which disputes arose. First, there was a dispute concerning the location of the mining activities and the boundaries between the respective mining claims. The Respondent maintained that its mining operations were conducted within the confines of its own registered claim, Dawn Star 5 Mine, which it had been operating since 2020. The Applicant, on the other hand, alleged that the Respondent entered its mining area located within Special Grant No. 9929. According to the Respondent, determining the precise location of the mining operations required verification of mining beacons and boundaries, which constituted a factual issue requiring evidentiary examination.

Second, the Respondent disputed the Applicant's allegation that approximately 600 tonnes of gold ore had been unlawfully removed. The Respondent maintained that the only ore moved from the site amounted to 42 tonnes extracted from its own mining operations. It was submitted that the alleged quantity of 600 tonnes would have required a substantial logistical operation involving numerous trucks and multiple trips. The Respondent argued that the Applicant had failed to provide specific details regarding how the alleged removal occurred, including the number of vehicles used, the identity of individuals present, or any resistance by workers on the site. The Respondent further contended that the absence of corroborating affidavits from the workers who were allegedly present during the incident reinforced the existence of a genuine dispute regarding the quantity and origin of the ore.

Third, the Respondent contended that there was a dispute regarding the ownership and origin of the ore in question. The Respondent maintained that the ore it transported originated from its own mining claim and not from the Applicant's mining area. The Respondent argued that the determination of whether the ore belonged to the Applicant or the Respondent would require

factual inquiry and evidence relating to mining operations and extraction points. It was submitted that such issues went beyond the limited scope of motion proceedings.

The Respondent therefore argued that the existence of these factual disputes rendered the application unsuitable for determination on affidavit evidence alone. According to the Respondent, the court would be required to either dismiss the application or refer the matter to trial or oral evidence in order to properly resolve the contested factual issues.

3. Hearsay Evidence

The Respondent also raised an objection regarding the admissibility of the evidence contained in the founding affidavit. It was argued that the deponent to the founding affidavit was not present at the scene at the time of the alleged dispossession and therefore lacked personal knowledge of the events described in the affidavit. The Respondent contended that the affidavit relied on information obtained from other individuals who were allegedly present during the incident. However, the Applicant had not filed confirmatory affidavits from those individuals. According to the Respondent, this rendered the evidence hearsay and therefore inadmissible. The Respondent argued that in the absence of direct evidence from persons who allegedly witnessed the dispossession, the Applicant had failed to place admissible evidence before the court to support its allegations.

On the merits, the Respondent denied unlawfully entering the Applicant's mining area or removing ore belonging to the Applicant. The Respondent maintained that it is the registered holder of its own mining claims, including Dawn Star 5 Mine, which it acquired in 2020 and on which it has conducted mining operations since that time. It was stated that the Applicant only obtained its Special Grant in February 2025, several years after the Respondent had commenced its operations.

The Respondent further alleged that on 5 March 2026 an individual identifying himself as "Professor," believed to be a representative of the Applicant, arrived at the Respondent's mine and asserted that the Respondent was operating within the Applicant's boundaries. According to the Respondent, the parties then inspected the respective mining beacons in order to verify the boundary lines. The Respondent stated that its manager demonstrated the location of its beacons,

which showed that it was operating within its own claim, after which the Applicant's representative departed without further incident.

The Respondent admitted that on 6 March 2026 it moved ore from its mining area, but maintained that the quantity involved was only 42 tonnes extracted from its own mine. The ore was allegedly loaded onto two trucks and transported to the Respondent's milling site where it was processed and milled by the end of 7 March 2026. The Respondent denied the allegation that 600 tonnes of ore had been taken from the Applicant's premises and argued that such an operation would have required numerous truckloads and would not have occurred without resistance or detailed accounts from the Applicant's workers. The Respondent further argued that since the ore it moved had already been milled, restoration of the alleged ore was impossible and the remedy of spoliation could not be granted.

In response to the points raised *in limine*, the Applicant submitted that the reference to "Form 29A" constituted a clerical error which did not affect the substance of the application. It was argued that the courts emphasise substance over form and that a typographical mistake should not render the application a nullity. The Applicant further submitted that the court possesses the discretion to depart from procedural rules where the interests of justice so require.

With regard to the alleged disputes of fact, the Applicant argued that the mere denial of allegations does not necessarily create a genuine dispute capable of defeating motion proceedings. It was contended that the Respondent failed to substantiate its version with supporting evidence such as weighbridge slips or documentary records to support its assertion that only 42 tonnes of ore had been transported. The Applicant further submitted that in spoliation proceedings the central issue is unlawful dispossession rather than ownership.

In response to the allegation of hearsay, the Applicant submitted that the deponent to the founding affidavit acted in his capacity as projects manager and had sufficient knowledge of the mining operations and the quantity of ore extracted from the site. It was further contended that the affidavit was properly deposed to on behalf of a corporate entity and that the deponent spoke in a representative capacity. The Applicant also asserted that the deponent had personal knowledge of

the events and that the Respondent's own acknowledgment that a representative of the Applicant engaged them at the mine corroborated the Applicant's presence at the site.

ISSUES FOR DETERMINATION

1. Whether the application is fatally detective due to non existing form
2. Whether there are material dispute of facts

APPLICATION OF THE LAW TO THE FACTS

The Respondent argued that the application was fatally defective on the basis that the notice of opposition referred to "Form 29A," which does not exist under the High Court Rules, 2021. The Respondent contended that this defect rendered the application a nullity. This contention cannot be sustained in light of the established principle that procedural rules are intended to facilitate the administration of justice and not to obstruct it where the defect complained of does not affect the substance of the proceedings.

In *Agricura (Private) Limited* v *Bassy Mwasigalla and 3 Others HH 305/24,* the court emphasised that procedural rules should not be applied in a manner that defeats substantive justice. At page 3 the court stated:

> "While the importance of procedural rules cannot be understated, this court must also consider the overarching objective of the legal system: the administration of justice. Procedural rules are designed to facilitate justice, not to serve as barriers that obstruct the fair resolution of disputes."

The principle established in that case is that minor procedural defects which do not prejudice the opposing party or affect the substance of the proceedings should not be elevated to grounds for dismissing an otherwise competent application.

Similarly, in *Moyo* v *Sibanda & 4 Others HB 81/17*, the court addressed a situation where an application had been presented in an incorrect procedural format. The court held that the defect did not invalidate the proceedings, stating:

> "In my view, despite the wrong format, the substance of the application has not been affected in any way, the application was served on 2nd respondent who filed her opposing papers."

The court therefore recognised that where the opposing party has been properly served and is able to respond to the application, the use of an incorrect format does not go to the root of the proceedings.

Applying these principles to the present matter, the reference to "Form 29A" constitutes no more than a clerical or typographical error. The substance of the application remains intact and the Respondent was properly served and able to file opposing papers addressing the merits of the matter. Therefore this point in law is accordingly dismissed

Second Preliminary Point: Material Disputes of Fact

The Respondent raised a preliminary objection that the matter cannot properly be determined on motion proceedings because there exist material disputes of fact between the parties. The dispute arises primarily in relation to the quantity and origin of the gold ore allegedly taken from the Applicant's mining site.

The legal position regarding disputes of fact in motion proceedings is settled. In *Supa Plant Investments (Pvt) Ltd* v *Chidavaenzi 2009 (2) ZLR 132 (H)* at 136F the court explained what constitutes a material dispute of fact as follows:

> "A material dispute of fact arises when material facts alleged by the applicant are disputed and traversed by the respondent in such a manner as to leave the court with no ready answer to the dispute between the parties in the absence of further evidence."

This principle establishes that a dispute becomes material where the court cannot determine the issue on the affidavits alone without additional evidence. The nature of a genuine dispute was further clarified in *Wightman t/a JW Construction* v *Headfour (Pty) Ltd and Another [2008]* (3) SA 371 where Heher JA held that:

> "A real, genuine and bona fide dispute of fact exist only where the court is satisfied that the party who purports to raise the dispute has in his affidavit seriously and unambiguously addressed the fact said to be disputed."

The court further recognises that where factual assertions are made without a proper evidentiary basis, the opposing party's denial may give rise to a dispute that cannot be satisfactorily resolved on the papers.This position was affirmed by the Supreme Court in *RioZim (Pvt) Ltd* v *Falcon Resources Private Limited & Another SC 28/22 on* p7 where it was held that:

> "…it is evident that a dispute of fact arises where the court is left in a state of reasonable doubt as to which course to take in resolving the matter without further evidence being led."

Applying these principles to the present matter, the Applicant alleges that approximately 600 tonnes of gold ore were unlawfully removed from its mining site by the Respondent. The Respondent disputes this assertion and maintains that the only ore transported amounted to 42 tonnes extracted from its own mining operations.

The difficulty, however, arises from the fact that the Applicant has not placed before the court any documentary or corroborative evidence to substantiate the allegation that the quantity of ore taken amounted to 600 tonnes. No production records, stock registers or supporting affidavits from workers who allegedly witnessed the removal of the ore were produced in support of that allegation. The figure of 600 tonnes therefore remains an unsupported assertion.

In those circumstances, the Respondent's denial of the quantity alleged by the Applicant creates a direct conflict on a material factual issue. The court is consequently faced with two irreconcilable versions, the Applicant's allegation that 600 tonnes were taken and the Respondent's assertion that only 42 tonnes of ore were moved from its own mine. In the absence of objective evidence demonstrating how the figure of 600 tonnes was determined, the court is left without a reliable basis upon which to resolve the discrepancy on the papers.

Applying the test set out in *Supa Plant Investments supra* the dispute regarding the quantity and origin of the ore leaves the court with no ready answer in the absence of further evidence. Furthermore, as stated in *RioZim* v *Falcon Resources*, the conflicting versions place the court in a state of reasonable doubt as to which version should be accepted without the benefit of further evidence. The determination of the true quantity of ore removed and the location from which it was extracted would therefore require the leading of viva voce evidence.

Accordingly, the dispute relating to the alleged removal of 600 tonnes of gold ore constitutes a material dispute of fact which cannot properly be resolved on the affidavits alone. This point *in limine* is upheld and the matter is struck of the roll with costs to the applicant on ordinary scale.

Task Vhiki Attorneys, applicant's legal practitioners
Nkomo and Sibanda, respondent's legal practitioners